

Evidentiary Issues

Defendant filed a Response and Evidentiary Objections to Plaintiff's Additional Material Facts along with its Reply memorandum. As the Court is denying Defendant's MSJ to allow for additional discovery, it need not address the arguments related to the propriety or impropriety of Plaintiff's Response to the Separate Statement.

As for the objections set forth therein, the Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

All written objections must be contained in a *separate* document from the reply memorandum, and must conform to the format set forth in CRC 3.1354(b). The party submitting the written objections "must submit with the objections a proposed order." (CRC 3.1354(c).) Defendant attempts to include objections within its Response to the Separate Statement. The Court declines to consider objections not filed separately in accordance with the California Rules of Court. (*Hodjat v. State Farm Mutual Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9.) The Court can overrule all of a party's objections on the grounds that they failed to comply with the requirements of Rule 3.1354. (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1118.)

Conclusion

Defendant Bay Area Restaurant Management Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication is **denied without prejudice**. Defendant is authorized to file a new Motion for Summary Judgment, or in the alternative, Summary Adjudication on these same issues once sufficient discovery has been completed by Plaintiff – including the deposition of Ms. Majano.

16. 9:00 AM CASE NUMBER: C25-02162
CASE NAME: PRO-MAX BUILDERS, INC. VS. EXPERT NATIONAL BUILDERS, INC.
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY: MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
TENTATIVE RULING:

Introduction

Before the Court is Defendant Menlo Westridge Affordable Partner, LP's ("Melo Westridge") Motion to Set Aside Default.

The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**

Procedural Background

This action and the related actions pending in this Court all arise from a construction project located in Richmond, California. In addition to this action, the related actions are: (1) *N Power Electric, Inc. v. Expert National Builders, Inc.*, Contra Costa Super. Ct. Case No. C25-03101; (2) *Nieto Consulting LLC v. ProMax Builders, Inc. et al.*, Contra Costa Super. Ct. Case No. C25-02691; and (3) *Guillen's Specialty Plumbing v. Expert National Builders, et al.*, Contra Costa Super. Ct. Case No. C26-00123. (Suri Decl. ¶ 4.) Menlo Westridge has appeared in the N Power Electric, Inc. case, has not been served in Nieto Consulting LLC case, and was served last week with the Guillen's Specialty Plumbing case. (Id.) Menlo

Westridge intends to respond to the Guillen’s Specialty Plumbing case, and to the Nieto Consulting case when served. (Id.)

This action was filed on July 29, 2025. Plaintiff attempted to serve Defendant Menlo Westridge by Notice and Acknowledgement of Receipt in early August 2025 which included the Complaint, Summons, and other required forms by mail, but Plaintiff’s counsel received no response or confirmation to the Notice and Acknowledgement of Receipt packages. (Davidson Decl. ¶ 4.)

Nearly three months later, on October 23, 2025, Karan Suri, principal of the general partner of Menlo Westridge, received an email from Menlo Westridge’s corporate agent containing a hyperlink. (Suri Decl. ¶¶ 2-3.) Mr. Suri is not an attorney. (Id. ¶ 2.) Due to a mistaken assumption that the email link was duplicative or non-substantive, Mr. Suri did not open the link and therefore did not access the served pleading. (Id. ¶¶ 2-3.)

Defendant Menlo Westridge’s counsel left voicemails to Plaintiff’s counsel, once in December and once in January expressly asking that Plaintiff stipulate to set aside the default so that Defendant Menlo Westridge could answer. Defendant Menlo Westridge’s counsel received no response. Both voicemails were left before Plaintiff sought its Default Judgment.

As a result, Defendant did not respond timely to that pleading. (Suri Decl. ¶¶ 2-3.) The Court entered default on November 25, 2025, followed by a default judgment on January 26, 2026.

Legal Standard for CCP § 473

It has long been established that “[the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854-855.) Thus, “the provisions of section 473 ... are to be liberally construed and sound policy favors the determination of actions on their merits.” [Citation.]’ [Citation.] ‘[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.’” (*Shapell SoCal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 212.) “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations “very slight evidence will be required to justify a court in setting aside the default.” [Citations.]” (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 695.) “Prejudice is one of the factors the trial court may properly consider in determining whether the moving party acted diligently.” (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

California Code of Civil Procedure section 473 (b) “... includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

Discretionary Provision

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against

him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

While it is true that the “statute’s ‘broad remedial provisions’ are to be ‘liberally applied to carry out the policy of permitted trial on the merits,’ the party seeking relief “bears the burden of proof in establishing a right to relief.” (*Hopkins v. Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410 citations omitted.) “The burden is a ‘double one: the moving party must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.’” (*Ibid.* internal quotations omitted.) The party must identify the specific facts which “demonstrate ‘that due to *some mistake*, either of fact or law, of himself or of his counsel, or through *some inadvertence*, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed.” (*Ibid.*) Courts do not relieve litigants from the effects of mere carelessness. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 922.)

Analysis

Mistake

A mistake permitting setting aside of a default takes two forms, mistake of fact or mistake of law. "A mistake of fact is when a person understands the facts to be other than they are; a mistake of law is when a person knows the facts as they really are but has a mistaken belief as to the legal consequences of those facts." (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The "surprise" referred to in section 473 is defined to be some "condition or situation in which a party to a cause is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." (*Miller v. Lee* (1942) 52 Cal.App.2d 10, 16.) The "excusable neglect" referred to in the section is that neglect which might have been the act of a reasonably prudent person under the same circumstances. (*Elms v Elms* (1946) 72 Cal.App.2d 508, 513.) A judgment will not ordinarily be vacated at the demand of a defendant who was either grossly negligent or changed his mind after the judgment. (*Kromm v. Kromm* (1948) 84 Cal.App.2d 523, 529.) To obtain relief a defendant must have acted within a reasonable time. (*Hewins v. Walbeck* (1943) 60 Cal.App.2d 603, 611.) A party will not be relieved from his default unless he shows he acted in good faith and that his mistake, inadvertence, surprise or excusable neglect was the actual cause of his failure to appear. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921-922.)

Here, there was a mistake of fact because the Principal of the general partner of Defendant Menlo Westridge Affordable Partners, LP mistakenly believed the email did not require immediate action. (Suri Decl. ¶ 2.)

Reasonability

Plaintiff contends that Mr. Suri’s admission that he saw the email from Defendant’s designated corporate agent but affirmatively chose not to open the link because he “mistakenly believed the email did not require immediate action” demonstrates a marked lack of diligence, especially for a

Principle of a general partner, thus making Mr. Suri's mistake inexcusable. (Opposition at pp. 3-4.)

Defendant Menlo Westridge argues that Mr. Suri's mistake is reasonable in an era of electronic service, inadvertent non-opening of an embedded link— particularly when emails may contain automated security warnings, duplicates, or non-substantive notifications—can reasonably lead to a mistaken belief that no action is required. (Motion at p. 5: 10-13.) This case is one of three related cases that Defendant Menlo Westridge is involved in, all arising out of the same construction project. Defendant Menlo Westridge has timely responded in one case and is anticipating their response to the other. Defendant Menlo Westridge posits this is further evidence that Defendant is not ignoring the litigation process but intends to actively participate and litigate on the merits. (Motion at p. 5: 16-20.)

Timeliness and Diligence

Plaintiff argues that it further expended effort and costs in obtaining the default Judgment in January 2026.(Opposition at p. 4: 17-19.)Defendant Menlo Westridge mentions that it twice sought an agreement to set aside the default but received zero response from Plaintiff who simply proceeded to obtain a default judgment after outreach by Defendant's counsel. (Sawyer Decl. ¶ 2.) When the attempt to secure this relief voluntarily failed, Defendant brought this motion. Defendant Menlo Westridge has thus acted within a reasonable time, and well within the 180-day limit imposed by Code of Civil Procedure section 473.

Considering the totality of the circumstances, Defendant Menlo Westridge has shown a satisfactory excuse for its default, and diligence in making the motion after discovery of the default judgement. Accordingly, the Court finds good cause to grant Defendant's Motion.

Ruling

1. The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**
2. The Court will set a Case Management Conference for this case at the hearing on June 3, 2026. The Parties are ordered to appear remotely or in-person for the CMC.

17. 9:00 AM CASE NUMBER: C25-02245

CASE NAME: FERBER LAW VS. JAGJEET SINGH

***HEARING ON MOTION IN RE: FOR INSTALLMENT PAYMENT ORDER AND STAY OF ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Jagjeet Singh's Motion for Installment Payment Order and Stay of Enforcement pertaining to the judgment entered against him by Plaintiff Ferber Law is **denied**.

Background

On August 6, 2025, Plaintiff Ferber Law, A Professional Corporation, filed a complaint against